

25COP928

Professionalism, Ethics and Cyber Security

Workplace and employment

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**Loughborough
University**

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This lecture

- What is workplace monitoring?
- Why do organisations monitor employees?
- How is monitoring implemented?
- What are the legal requirements?
 - Data Protection Act
 - Employment Act



Computerised monitoring in the workplace

- Monitoring employees' computer and internet use
- Monitoring employees' computer and internet use
- Monitoring telephone and photocopier use
- Access to restricted areas (e.g. archive or server room)



Reasons for monitoring internet use

- To prevent loss of productivity
- To protect organisational assets
- To minimise negative publicity
- To reduce the risk of legal liability



Other arguments for monitoring

- Improve **quality** of customer service
- Identify staff **training needs**
- Review **skills** and **performance**
- Ensure workplace **safety**
- Monitor **compliance** with health and safety rules
- Ensure **compliance** with legal and organisational policies
- Detect and investigate potential **misconduct**



Arguments against monitoring

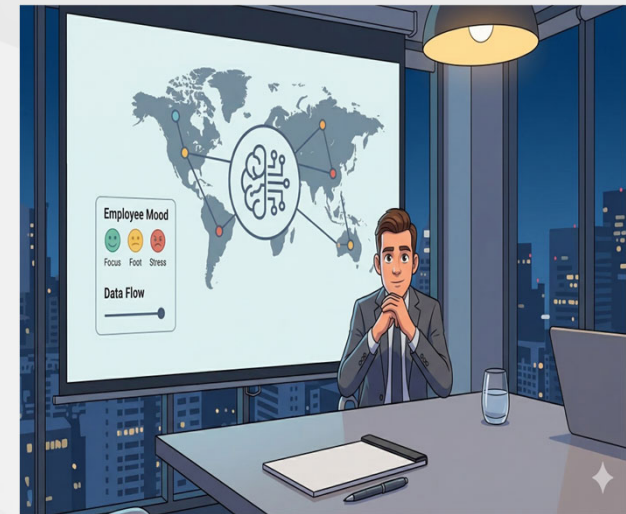
Concerns About Workplace Monitoring

- May reduce employee trust and morale
- Focuses on quantity rather than quality of work
- Raises concerns about privacy and employee rights
- Difficult to separate work-related and personal information

Examples:

- Emails to Human Resources
- Communication with occupational health advisors
- Messages to trade union representatives

These may involve **sensitive personal data** under data protection regulations



Employee monitoring methods

Recording	Recording staff activities by CCTV cameras
Keeping	Keeping recordings of telephone calls, e.g. in a call center
Opening	Opening staff emails or listening to voicemails
Checking	Checking logs of telephone numbers called
Examining	Examining logs of websites visited
Searching	Searching staff, their personal space and work areas
Installing	Installing tracking equipment in vehicles
Making and storing	Making and storing copies of documents that include personal information



Technical methods for monitoring

Network Level

- Track websites visited, block URLs (e.g. via firewalls, proxy servers)
- Log traffic using packet sniffers (e.g. Wireshark)
- Monitor bandwidth usage (e.g. large file downloads)
- Firewall

Endpoint Monitoring Tools

- Employee Internet Management (EIM) software tracks: User activity (web, apps, screen, keystrokes)
- Mobile Device Management (MDM): Mobile device success and control

Communication Monitoring

- Scan emails for keywords, attachments, and sensitive content
- Monitor instant messaging apps and chat logs

Content and File Monitoring

- Detect presence of specific file types (e.g. .mp3, .avi, illegal materials)
- Monitor changes to software or unauthorised installations



Legal monitoring activities: overview

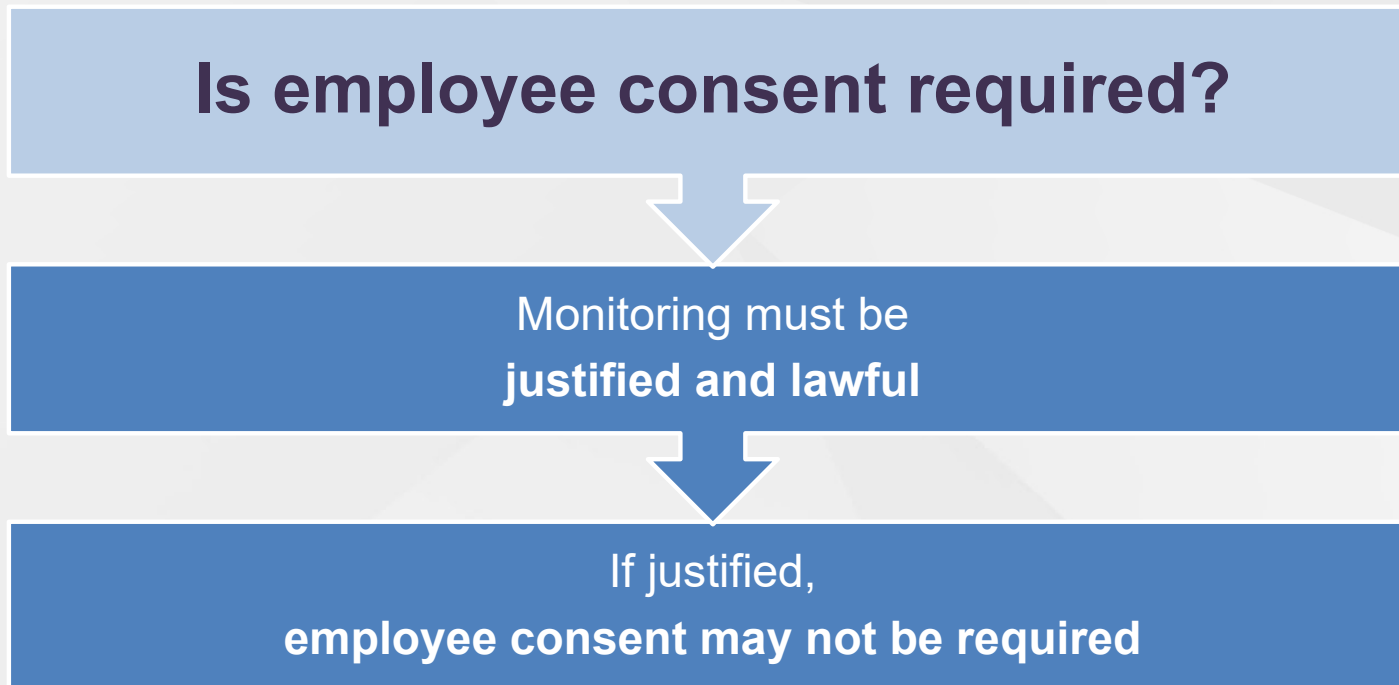
Employers have the right to monitor employee activities in many situations
(The Data Protection Act does not prevent monitoring.)

Examples:

- Checking **emails and attachments**
- Reviewing **websites visited**
- Monitoring **performance** via workplace systems
- Using **CCTV** (inside and outside the workplace)
- Checking **phone logs** or recording **calls**



Legal monitoring activities: consent



When consent may be required

Personal Data Processing	When monitoring involves collecting or using data that can identify an individual (e.g. under GDPR)
Invasive Monitoring	Such as accessing emails, chats, or tracking location (e.g. GPS), which may affect privacy
Legal Requirements	Some laws require consent for certain types of monitoring, especially where sensitive data is involved
Employment Contracts or Policies	If employment contracts or workplace policies state that consent is needed



When consent is not required

Legitimate Interests	Monitoring may be justified for security, fraud prevention, or business operations
Low-Impact Monitoring	Limited data use (e.g. tracking website visits without viewing content) may not significantly affect privacy
Legal Obligation	Monitoring required by law can be carried out without consent if necessary and proportionate
Implied Consent	Monitoring clearly stated in policies and part of normal workplace practice



Relevant laws for employee monitoring

Data protection Act

- Applies when monitoring involves personal data
- Monitoring must be lawful and fair
- If interception leads to recording personal data, both DPA and RIPA apply

Regulation of Investigatory Powers Act (RIPA)

- It is unlawful to intercept communications
- Allowed if:
 - Consent is given
 - Necessary for communication systems
- Mainly applies to public authorities
- Workplace monitoring is usually covered by data protection law



Employee monitoring: Impact assessment

To decide whether your employee monitoring is justified, you should undertake an **impact assessment**.

Purpose & Benefits

Clearly define the purpose and assess benefits compared to alternatives

Impact on Employees

Consider privacy, fairness, and potential intrusion into workers' lives

Confidentiality

Assess whether sensitive information may be exposed

Intrusion & Justification

Ensure any intrusion is minimised and properly justified

Consultation

Involve employees or their representatives

Obligations & Compliance

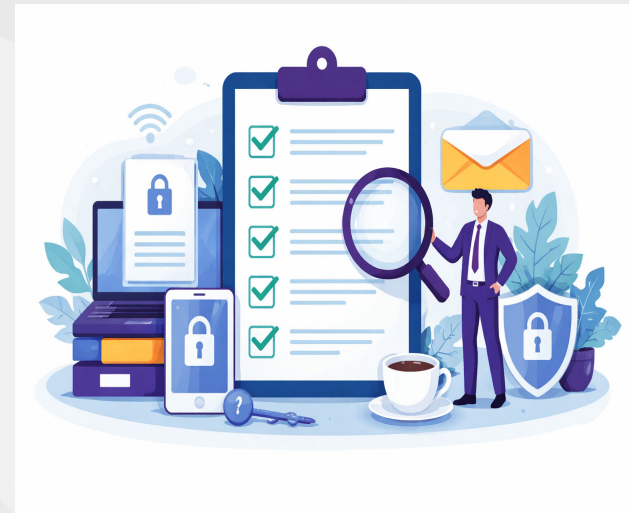
Ensure data security and compliance with legal requirements



Workplace policy

The policy should:

- **Define acceptable use** of workplace systems and equipment
- **Clarify personal use**, including when and to what extent it is allowed
- **Address confidentiality** of communications
- **Explain monitoring practices**, including purpose and methods



The Information Commissioner's Office



The Information Commissioner's Employment Practices Code



Help employers comply with the Data Protection Act and to encourage them to adopt good practice.

Employment information

<https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/employment/>



Workplace monitoring (ICO guidance)

Employers should follow good practice when monitoring employees:

1 - Systematic Monitoring

- Ongoing and routine monitoring of employees
- May apply to all staff or specific groups
- Example: scanning all email messages

2 - Occasional Monitoring

- Temporary monitoring for a specific issue
- Used in response to a particular concern
- Example: monitoring emails of a suspected employee



Workplace monitoring (ICO guidance)

Transparency	Employees should be informed in advance and given a right to challenge monitoring
Data Minimisation	Only collect information that is relevant to the job
Accuracy	Computer-generated data should be verified before use
Employee Rights	Employees should be able to access their data and seek remedies if privacy is violated
Data Retention	Data should not be kept longer than necessary



Workplace monitoring

Monitoring may raise concerns about employee behavior

Concerns should be followed by:

- Proper investigation
- Fair disciplinary rules and procedure



Disciplinary rules and procedures

The Employment Act 2002 sets minimum requirements for dismissal, disciplinary, and grievance procedures.

Organisational Responsibilities

- Employers must have clear disciplinary rules and procedures
- Employees should have access to them and be involved in their development

Purpose

- Ensure a safe and efficient workplace
- Maintain good employment relations



Disciplinary rules and procedures

Disciplinary Rules:

Explain expected behaviour at work

- Conduct: behaviour in the workplace
- Misconduct: breaking workplace rules
- Capability: not meeting job expectations (handled differently from misconduct)

Disciplinary Procedures:

How employers deal with issues

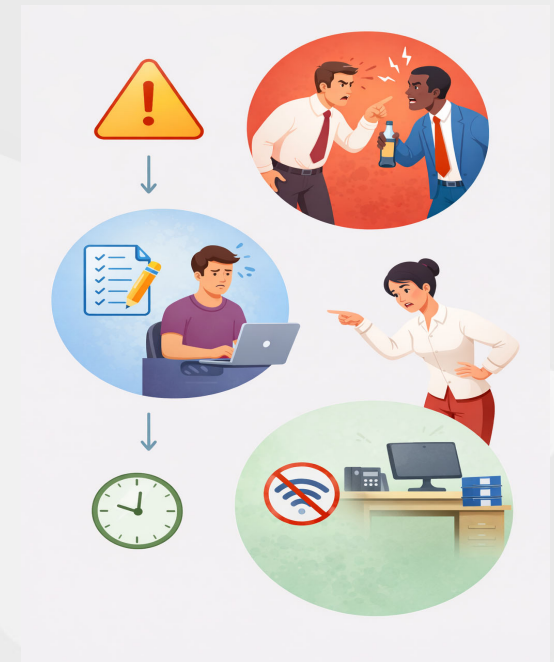
- Used to manage misconduct
- Used to manage unsatisfactory performance



Disciplinary rules – examples

Disciplinary rules typically cover:

- **Behaviour issues**
 - Fighting or drunkenness
 - Harassment or victimisation
- **Performance and conduct**
 - Unsatisfactory work performance
 - Failure to follow instructions (repeated or serious)
- **Workplace responsibility**
 - Misuse of company facilities
 - Poor timekeeping
 - Unauthorised absence



The ACAS Code of Practice

ACAS (Advisory, Conciliation and Arbitration Service)

- Independent public body (established 1975)
- Improves workplace relations
- Provides guidance on employment issues
- Publishes the **Code of Practice on Discipline and Grievance**

<https://www.acas.org.uk/>



ACAS principles for disciplinary issues

- **Informal resolution:** try to resolve issues early
- **Investigation:** fully investigate before action
- **Right to respond:** employees can present their case
- **Transparency:** provide evidence in advance



ACAS principles for disciplinary issues (continued)

- **Right to be accompanied:** employee can bring a colleague or trade union representative
- **Fair dismissal:** no dismissal for a first offence except gross misconduct
- **Right to appeal:** employees can challenge disciplinary decisions
- **Serious cases:** procedures may start at any stage depending on misconduct



Gross misconduct

Definition: Acts so serious that they may justify dismissal.

Examples:

- **Theft or fraud**
- **Violence or bullying**
- **Serious damage** to property
- **Serious misuse** of company systems
- Accessing **offensive or inappropriate content**



Gross misconduct (more examples)

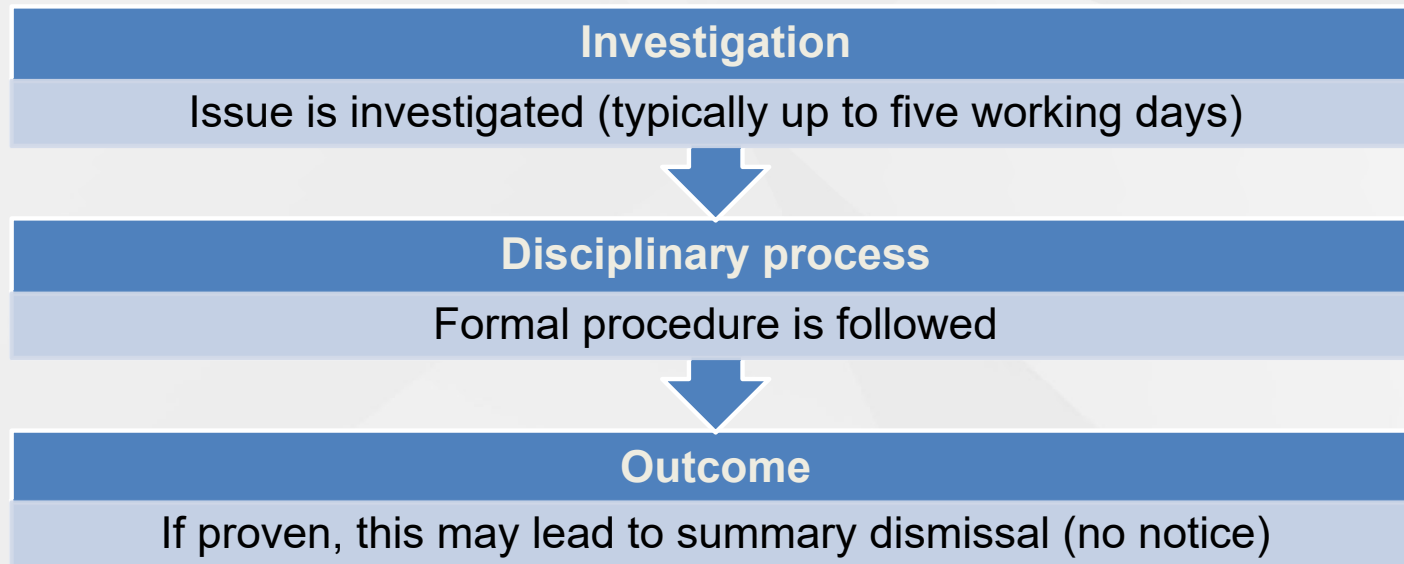
Examples (continued):

- **Discrimination** or harassment
- Bringing the organisation into **disrepute**
- **Alcohol or drug-related** incapability at work
- **Serious negligence** causing harm or loss
- Breach of **health and safety** rules
- Breach of **confidentiality**



How gross misconduct is dealt with

Employee may be **suspended** on full pay during investigation (up to five days).



Appeals

Right to appeals

Employees can challenge a disciplinary decision

Timeframe

Appeal must be submitted within five working days

Review

A senior manager reviews the decision

Outcome

The original decision may be confirmed, changed, or overturned



ACAS Code of Practice

- See the Acas guide to *Discipline and Grievance At Work*:

[Discipline and grievance](#)



Summary

- Rationale for workplace monitoring
- Guidelines for monitoring practices
- Role of the Information Commissioner's Office (ICO)
- Computer misuse in the workplace
- Disciplinary rules and procedures

